

File No.: EXP202210597

RESOLUTION No.: R/00063/2023

Considering the complaint filed on August 23, 2022, before this Agency by A.A.A. (hereinafter the complainant) against CAIXABANK PAYMENTS & CONSUMER EFC, EP, S.A.U. (hereinafter the respondent), for not having duly attended to their right of access.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: The complainant exercised their right of access against the respondent with NIF A08980153, and their request, as stated by the complainant, did not receive the legally established response. They provide various documentation related to the complaint filed before this Agency and regarding the exercise of the right exercised.

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has provided a mechanism prior to the admission of complaints filed before the AEPD, consisting of forwarding them to the Data Protection Delegates designated by the data controllers or processors, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not designated any, the complaint was forwarded to the respondent entity for analysis and to respond to the complainant and this Agency within one month.

The respondent has responded to the information request made by this AEPD incompletely, as in the response to the complainant, they did not provide the requested data regarding the contract signed with the entity.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for understanding the complainant's claims to be satisfied. Consequently, on November 23, 2022, for the purposes provided for in Article 64.2 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing and informed the parties that the maximum period to resolve this procedure, which is understood to have commenced with said admission agreement, will be six months.

The aforementioned agreement granted the respondent entity a hearing period, so that within ten working days, they could present any allegations they deemed appropriate. This entity provided new documentation regarding the contract.

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Namely: "...Copy of the contract: attached as Annex No. 1

- Date of establishment: 07/08/2006
- Certificate of the current status of the same and information associated with the contract: attached as Annex No. 2
- Access to the information associated with the contract (including who has had access to the data of the said contract and for what purpose): CaixaBank Payments & Consumer has service provision contracts with collection agencies that act as data processors, processing the data on behalf of CaixaBank Payments & Consumer for the purpose of recovering debt..."

FOURTH: After examining the allegations presented by the respondent, they are forwarded to the complainant, so that within fifteen working days, they can formulate any allegations they consider appropriate.

The complainant presents allegations and expresses their disagreement regarding the documentation received. They refer to incorrect data, unspecified others, and conclude by stating that access to the requested data has not been granted.

FIFTH: Finally, after forwarding the complainant's allegations to the respondent, the respondent sent a

new document to the complainant completing the initially provided information.

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for the Protection of Data is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR); and in Article 47 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD).

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for the Protection of Data is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as handling complaints submitted by a data subject and investigating the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the case that they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, the same was forwarded to the responsible entity for analysis and to respond to this Agency.

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within one month and shall prove that it has provided the claimant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

Said admission agreement determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the claimant. Once this period has elapsed, the interested party may consider their claim to be accepted.”

The purification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, whose exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be purified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure the guarantees and rights of the claimant are duly restored.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and

mechanisms to facilitate the exercise of rights by the interested party, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the interested party, and to express its reasons in case it does not intend to address such request.

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request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the responsible party.

The communication addressed to the interested party in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the responsible party may request the affected party to specify the "data or processing activities referred to in the request." The right will be deemed granted if the responsible party provides remote access to the data, considering the request fulfilled (although the interested party may request information regarding the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive more than once during a period of six months, unless there is a legitimate reason for it.

On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

FOURTH: In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the interested party has the right to obtain from the data controller confirmation of whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Like the other rights of the interested party, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the personal data has been or will be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization.

The possibility of obtaining a copy of the personal data being processed will not negatively affect the rights and freedoms of others; that is, the right of access will be granted in such a way that it does not affect third-party data.

FIFTH: It should be noted that this resolution will exclusively analyze whether the right of access has been duly addressed.

In the case analyzed here, the complaining party exercised their right of access and, after receiving the response from the respondent, considered it incomplete. This Agency also expressed the same view when examining the information provided, so the complaint was admitted for processing to ensure that the requested right was fully addressed.

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After analyzing all the documentation and the arguments submitted by both parties, following the admission for processing, this Agency considers that the right has been addressed throughout the procedure with the information provided in the arguments, and therefore, the complaint is upheld on formal grounds for having been addressed in an untimely manner.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD on formal grounds the complaint filed by A.A.A. against the entity No CAIXABANK PAYMENTS & CONSUMER EFC, EP, S.A.U. However, the issuance of a new certification by said entity is not warranted, as the response was issued untimely, without requiring additional actions by the responsible party.

SECOND: TO NOTIFY this resolution to A.A.A. and to CAIXABANK PAYMENTS & CONSUMER EFC, EP, S.A.U.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. 1037-281122

Mar España Martí

Director of the Spanish Agency for Data Protection

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